

An Act

ENROLLED SENATE
BILL NO. 1980

By: Logan of the Senate

and

Turner of the House

An Act relating to crimes and punishments; defining terms; creating certain offenses related to gift cards and gift certificates; providing for penalties; providing for codification; and providing an effective date.

SUBJECT: Fraud

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1740.3 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. For the purposes of this section:

1. "Cardholder" means any person to whom a physical or virtual gift card or gift certificate is issued through a purchase or who receives a gift card or gift certificate from another;

2. "Gift card" means card, code, or device that is issued to a consumer on a prepaid basis primarily for personal, family, or household purposes in a specified amount, regardless of whether that amount may be increased or reloaded in exchange for payment and that is redeemable upon presentation at a merchant or multiple merchants. It includes closed-loop gift cards that are redeemable at a single merchant or group of affiliated merchants and open-loop gift cards

that are redeemable at multiple unaffiliated merchants for goods or services within the payment card network;

3. "Gift certificate" means a written promise that is issued in a specified amount, indicated on its face, and cannot be increased in value, is usable to purchase goods or services only at a single merchant or multiple merchants, and is purchased by a consumer on a prepaid basis in exchange for payment;

4. "Issuer" means a person or entity, or agent thereof, who issues gift cards or gift certificates to consumers;

5. "Redemption information" means information unique to each gift card or gift certificate; and

6. "Value" means the greatest amount of economic loss the owner of the property might reasonably suffer.

B. 1. Any person who knowingly and willfully acquires or retains possession of a gift card, gift certificate, or redemption information without the consent of the cardholder or issuer shall, upon conviction, be guilty of larceny punishable pursuant to Section 1702 of Title 21 of the Oklahoma Statutes.

2. Any person who knowingly and willfully alters or tampers with a gift card, gift certificate, or the packaging of such items shall, upon conviction, be guilty of forgery in the third degree punishable pursuant to paragraph 3 of Section 1621 of Title 21 of the Oklahoma Statutes.

3. Any person who knowingly and willfully devises a scheme to obtain the redemption information to a gift card or gift certificate from a cardholder or issuer by means of false or fraudulent pretenses, representations, or promises shall, upon conviction, be guilty of fraud punishable pursuant to Section 1541.1 of Title 21 of the Oklahoma Statutes.

4. Any person who knowingly and willfully uses, for the purpose of obtaining money, goods, services, or anything else of value, a gift card or gift card redemption information that has been obtained in violation of paragraph 1 or 2 of this subsection shall, upon conviction, be guilty of larceny punishable pursuant to Section 1702

of Title 21 of the Oklahoma Statutes. If the value of all money, goods, services, and other things of value obtained in violation of this paragraph exceeds Nine Hundred Fifty Dollars (\$950.00) in any consecutive six-month period, the person shall, upon conviction, be guilty of grand larceny punishable pursuant to Section 1705 of Title 21 of the Oklahoma Statutes.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 5th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____